

Here, Cross Complainant acknowledges the December 16 warning, continued driving before completion, and that coverage attached only after completing the course/certificate and payment post-loss. The driver was added only after satisfying conditions, not before the accident. No triable issues remain; judgment should be entered. The dispositive causation failure warrants summary judgment

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600639	BARBA vs RIVERSIDE COUNTY FIRE DEPARTMENT	DEMURRER ON COMPLAINT FOR MEDICAL MALPRACTICE

Tentative Ruling:

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 67.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

I. Professional Negligence

Defendant Cal Fire argues the Complaint fails to identify a statutory basis for liability and, therefore, fails as a matter of law. (Gov. Code §815(a).) Section 815(a) states, except as otherwise provided by statute, “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” Defendant is correct the Complaint does not allege any statutory basis for Cal Fire’s liability, meaning the demurrer should be sustained.

In Opposition, Plaintiff argues Health & Safety Code §1799.107 only provides qualified, and not absolute, immunity to Cal Fire. Health & Safety Code § 1799.107 provides that “a qualified immunity from liability shall be provided for public entities and emergency rescue personnel providing emergency services.” (Health & Safety Code § 1799.107(a).) “For purposes of this section, it shall be presumed that the action taken when providing emergency services was performed in good faith and without gross negligence.” (Health & Safety Code § 1799.107(c).) Under California law, “gross

negligence” is only established by “the want of even scant care or an extreme departure from the ordinary standard of conduct.” (*Eastburn v. Regional Fire Protection Auth.* (2003) 31 Cal.4th 1175, 1186 [internal quotation omitted].) Plaintiff argues Government Code §815 does not apply where qualified immunity under Health & Safety Code §1799.107 is triggered. (Opp. p.5:24-27.) Plaintiff further argues that the Complaint sufficiently alleges Cal Fire acted with gross negligence and/or in bad faith, meaning it is not entitled to protection under Health & Safety Code §1799.107. (Opp. p.6:9-11.)

There are a few issues with Plaintiff’s argument. First, the Complaint does not allege Health & Safety Code §1799.107 applies. The Complaint cannot be saved by a statute that is not pled. Second, Plaintiff’s allegations are lumped together against all defendants and do not identify which specific acts are alleged against Cal Fire. Paragraph 35 of the Complaint alleges various negligent acts, including: (1) a 30-minute delay in responding to the emergency after 911 was called; (2) a 21-minute delay on scene, instead of rapid transport; (3) transport to a medical facility that was more than twice the distance away than the closest medical facility; (4) negligent treatment of Plaintiff by paramedics; (5) negligent failure to properly evaluate, diagnose, and manage Plaintiff’s medical condition; and (6) negligent failure to undertake appropriate courses of action. (¶35.) It is not clear which, if any, of these actions are attributable to Cal Fire as opposed to the other named Defendants. Without specific facts alleged against Cal Fire, the court cannot determine whether Plaintiff has sufficiently alleged gross negligence or “an extreme departure from the ordinary standard of conduct” such that §1799.107 qualified immunity does not apply. (*Sanchez v. Kern Emergency Med. Transportation Corp.* (2017) 8 Cal.App.5th 146, 153.)

Sustain the demurrer with leave to amend.

II. Ruling

Sustain the demurrer with 20 days leave to amend.